Master Services Agreement

This agreement is made between **Halberd Fieldworks Ltd**, Unit 4, Saltmarsh Business Park (the "Supplier"), and **Orrin Valley Distribution Ltd**, Dock Road 17 (the "Customer"), for facility and grounds services at the Customer's distribution sites.

1. Definitions and interpretation

1.1 **"Business Day"** means a day other than a Saturday, Sunday or public holiday at the site where the Services are performed.[1]

1.2 **"Business Hours"** means 07:00 to 19:00 on a Business Day.

1.3 **"Core Services"** means the planned cleaning, grounds maintenance and minor repair services described in Part A of Schedule 1.

1.4 **"Charges"** means the monthly charge and the rates set out in clause 5 and Schedule 1.

1.5 Headings are for convenience only and do not affect the interpretation of this Agreement. A reference to a clause or a schedule is a reference to a clause of, or a schedule to, this Agreement.

2. Term

2.1 This Agreement starts on 1 February 2027 and continues for an initial term of 36 months, unless it is terminated earlier under clause 10.

2.2 Either party may end this Agreement at the end of the initial term by giving the other party not less than three months' written notice. If no notice is given, the Agreement continues until terminated by either party on three months' written notice.

3. Services

3.1 The Supplier shall provide the Core Services at the sites listed in Schedule 1 and, on request, the additional services listed in Part B of Schedule 1.

3.2 The Supplier shall perform the Services with reasonable skill and care, in line with good industry practice and with all laws and site rules that apply to the Services.

3.3 The Customer shall give the Supplier's personnel safe access to its premises during Business Hours and at other times agreed in advance for urgent work.

3.4 Subcontracting. The Supplier may subcontract the cleaning of external areas and car parks only to a subcontractor approved in writing by the Customer. The Supplier remains responsible for the acts and omissions of its subcontractors as if they were its own.

4. Personnel and site security

4.1 The Supplier shall make sure that all personnel working at the sites hold a valid site induction certificate and wear the identity badge issued by the Customer.

4.2 The Supplier shall comply with the Customer's site security policy as notified to the Supplier from time to time, including the rules on visitors, vehicles and restricted areas.

4.3 The Supplier shall maintain cyber insurance with a limit of not less than EUR 2,000,000 per claim for the whole term and shall provide the certificate on request.

1 Public holidays are taken from the regional calendar that applies to each site on 1 January of the contract year.

4.4 Before a person first works at a site, the Supplier shall carry out the background checks described in the Customer's security policy and keep a record of the results for the term.

4.5 The Supplier shall not replace the account manager named in Schedule 1 without first consulting the Customer, except in the case of illness or the end of employment.

5. Charges and payment

5.1 The Customer shall pay a fixed monthly charge of EUR 19,750 excluding VAT for the Core Services, invoiced in arrears on the first Business Day of each month.

5.2 Call-outs and additional services are charged at the rates in Part B of Schedule 1. The Supplier shall obtain a purchase order number before starting any additional service.

5.3 The Charges are adjusted on each anniversary of the start date by the annual change in the index.[2]

5.4 The Customer shall pay each undisputed invoice within 30 days of receipt. The Customer shall notify the Supplier of any disputed amount, with reasons, within 10 Business Days of receipt.

6. Service levels

6.1 The Supplier shall meet the response and completion times in Part C of Schedule 1 and shall report its performance against them in a monthly service report.

6.2 If the Supplier misses a service level, the Customer is entitled to the service credit stated in Schedule 1. Service credits in any month shall not exceed 10% of the monthly charge for that month.

6.3 The parties shall meet at least once each quarter to review the service reports, open actions and any proposed changes to the Services.

7. Assignment and subcontracting

7.1 Neither party may assign or transfer this Agreement, or any of its rights under it, without the prior written consent of the other party, which shall not be unreasonably withheld.

8. Liability

8.1 Nothing in this Agreement limits or excludes liability for death or personal injury caused by negligence, for fraud, or for any other liability that cannot be limited by law.

8.2 Subject to clause 8.1, the total liability of each party in each contract year is limited to 125% of the Charges paid and payable in that contract year.

8.3 **Neither party is liable for loss of profit, loss of revenue, loss of goodwill or any indirect or consequential loss**, however arising.

8.4 The Supplier shall hold public liability insurance with a limit of not less than EUR 5,000,000 for any one event and employer's liability insurance as required by law.

9. Confidentiality and personal data

9.1 Each party shall keep the other party's confidential information secret and use it only for the purposes of this Agreement. This obligation survives for three years after the end of this Agreement.

2 Harmonised index of consumer prices for the euro area, as first published; any increase is capped at 2.5% per contract year.

9.2 The Supplier shall process personal data only on the Customer's documented instructions and shall notify the Customer of any personal data breach without undue delay.

9.3 The parties shall sign a data processing agreement in the form attached as Schedule 2 before any personal data is processed.

10. Termination

10.1 Either party may terminate this Agreement with immediate effect by written notice if the other party commits a material breach and, where the breach can be remedied, fails to remedy it within 30 days after being asked to do so.

10.2 Either party may terminate this Agreement with immediate effect by written notice if the other party becomes insolvent or ceases to carry on business.

10.3 On termination the Supplier shall return all keys, badges and equipment belonging to the Customer and remove its own equipment from the sites within 10 Business Days.

11. Governing law and disputes

11.1 This Agreement is governed by the laws of the Netherlands. The courts of Utrecht have exclusive jurisdiction over any dispute arising out of or in connection with it.

11.2 Before starting court proceedings, the parties shall try in good faith to settle the dispute through a meeting of senior managers within 20 Business Days of a written request.

Signed by the parties on the dates below.

For Halberd Fieldworks Ltd
Signature: _____
Name and title: _____
Date: _____

For Orrin Valley Distribution Ltd
Signature: _____
Name and title: _____
Date: _____

Schedule 1 — Services, service levels and rates

Part A covers the Core Services included in the monthly charge. Part B lists additional services charged per unit. Part C lists the service levels. Account manager: J. Okafor. Rates are in EUR excluding VAT.

Item	Service	Frequency or unit	Rate (EUR)
A1	Daily cleaning of offices and welfare areas	Daily	Included
A2	Warehouse floor scrubbing, aisles 1–24	Weekly	Included
A3	Washroom hygiene and consumables	Daily	Included
A4	Window cleaning, ground floor	Monthly	Included
A5	Grass cutting and edging	Fortnightly, Apr–Oct	Included
A6	Hedge and shrub maintenance	Quarterly	Included
A7	Litter picking, yards and car parks	Twice weekly	Included
A8	Gully and drain inspection	Quarterly	Included
A9	Minor repairs up to 2 hours per job	On request	Included
A10	Pest control inspection	Monthly	Included
A11	Waste compactor cleaning	Monthly	Included
A12	Loading bay door seal check	Quarterly	Included
A13	Kitchen extract filter cleaning	Quarterly	Included
A14	Fire exit route inspection	Weekly	Included
A15	Car park line marking touch-up	Yearly	Included
A16	Reception floor polishing	Monthly	Included
A17	Solar panel cleaning, roof arrays	Twice yearly	Included
B1	Additional cleaning hour, Business Hours	Per hour	38.50
B2	Additional cleaning hour, evenings	Per hour	46.00
B3	Additional cleaning hour, weekends	Per hour	57.50
B4	Deep clean of a welfare block	Per block	420.00
B5	High-level window cleaning with lift	Per day	980.00
B6	Carpet extraction cleaning	Per m²	4.80
B7	Pressure washing of yards	Per m²	2.10
B8	Winter gritting of yards	Per visit	260.00
B9	Snow clearance with loader	Per hour	118.00
B10	Graffiti removal	Per m²	24.00
B11	Bulky waste removal	Per load	310.00
B12	Confidential waste shredding	Per bin	16.00
B13	Replacement of ceiling tiles	Per tile	19.50
B14	Replacement of LED panel	Per panel	64.00
B15	Emergency spill response	Per incident	540.00
B16	Out-of-hours call-out, first hour	Per call-out	165.00
B17	Out-of-hours call-out, each further hour	Per hour	72.00
B18	Temporary barrier hire	Per week	35.00
B19	Supervisor attendance at audits	Per hour	54.00

Item	Service	Frequency or unit	Rate (EUR)
B20	Event set-up and clear-down	Per event	690.00
C1	Emergency call-out response	Within 2 hours	Credit 2%
C2	Urgent repair response	Within 8 hours	Credit 1%
C3	Routine repair completion	Within 5 Business Days	Credit 1%
C4	Missed scheduled clean, re-visit	Same Business Day	Credit 0.5%
C5	Monthly service report delivered	By the 5th Business Day	Credit 0.5%
C6	Quarterly review meeting held	Each quarter	Credit 0.5%
C7	Washroom consumables restocked	Within 4 hours	Credit 0.5%
C8	Gritting before 06:00 when frost forecast	Each forecast day	Credit 1%
C9	Spill response on site	Within 1 hour	Credit 2%
C10	Complaints acknowledged	Within 1 Business Day	Credit 0.5%